

Approved by _____
form only: cmf
Date: 2/5/20

DEVELOPMENT AGREEMENT

THIS DEVELOPMENT AGREEMENT (the "Agreement"), is made and entered into this _____ day of _____, 2020, by and between the CITY OF CHEYENNE, CHEYENNE, WYOMING, a municipal corporation duly organized under the laws of the State of Wyoming, hereinafter referred to as the "City," and BLUE FEDERAL CREDIT UNION, INC., a Federal Credit Union, hereinafter referred to as the "Developer."

RECITALS

WHEREAS, the Developer has secured approvals with the City to redevelop the Cole Shopping Center with certain real property situated in the County of Laramie, State of Wyoming, (hereafter sometimes referred to as the "Property"), and legally described as follows, to wit:

Block 5 of Mountview Park Subdivision, City of Cheyenne, Laramie County, Wyoming, otherwise commonly known as 400 Cole Shopping Center, Cheyenne, Wyoming; and

WHEREAS, the Developer desires to develop the Property and has submitted to the City plats, plans (including utility plans), reports and other documents required for the approval of a plan according to the City's development application submittal requirements master list (the "Development Plan Documents"); and

WHEREAS, the City has approved the Development Plan Documents submitted by the Developer, subject to compliance with approval requirements and conditions which, among other things, involve the installation of and construction of utilities and other municipal improvements in connection with the development of the Property; and

WHEREAS, specific conditions of approval are reflected in the Certificate of Review ("COR") for the Development of the Property dated October 2, 2019, attached hereto and incorporated by this reference as Exhibit A. The COR was issued pursuant to Section 2.2.3 of the Unified Development Code. Developer has received approval of the Development Plan Documents based on the revised site plan and building elevations submitted October 2, 2019, and the revised landscape plan submitted July 3, 2019, for the Property; and

WHEREAS, the Developer has made a substantial monetary investment into the development of the Property which includes: the redevelopment of a blighted shopping center; granting additional rights-of-way to the City; positioning future structures; all that require parking areas and site access points in specific locations to capitalize on future circulation patterns and create a viable commercial center which is herein referred to as "Development"; and

WHEREAS, the City intends to make future operational and/or maintenance improvements to the roundabout at the intersection of East Pershing Boulevard/Converse Avenue/East 19th Street which includes additional right-of-way along a portion northwest of the Development; and

WHEREAS, the Developer intends to execute that certain Irrevocable Public Access Easement ("Easement") to the City granting the City an easement for public sidewalks across a portion of the Developer's property, as fully described in the Easement Agreement. A copy of the Easement agreement is attached hereto and incorporated by this reference as Exhibit B; and

WHEREAS, the Developer intends to dedicate a right-of-way along Converse Avenue and East Pershing Boulevard (the "ROW") as shown and more fully described on the ROW dedication attached hereto and incorporated by this reference as Exhibit C; and

WHEREAS, the Developer is granting the Easement and ROW as consideration for the covenants contained within this Agreement; and

WHEREAS, serious damage and irreparable harm to Developer would occur if any future responsibility of regional improvements are placed upon the Developer, and points of access are removed, relocated or downgraded.

NOW, THEREFORE, in consideration of the promises of the parties hereto and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, the Parties agree as follows:

1. Recitals Incorporated. The foregoing recitals are incorporated herein by reference into this Agreement as though set forth at length.

2. Terms. The Parties agree as follows:

A. The Developer shall construct the Property, abide by the terms of the COR and the approved Development Plan Documents.

B. Upon the dedication of the ROW, the City shall not place future responsibilities for any improvements on the Developer regarding operational or maintenance enhancements to the roundabout adjacent to the Development at the intersection of East Pershing Boulevard/Converse Avenue/East 19th Street.

C. The City shall not further remove, downgrade or restrict any access point(s) beyond what is currently shown on the approved Development Plan Documents.

D. The Developer shall work with the City in good faith to grant an expansion of or an additional right-of-way at the intersection of East Pershing Boulevard/Converse Avenue/East 19th Street, as may be necessary, subject to the limitations contained in paragraph 2(c). Notwithstanding the foregoing, the Developer shall have no obligation to construct or fund the construction of any improvements associated with this Development related to the roundabout at the intersection of East Pershing Boulevard/Converse Avenue/East 19th Street.

E. The City shall be responsible for the design and construction of the permanent medians on East Pershing Boulevard and Converse Avenue. The Developer shall only be responsible for construction costs for interim improvements as detailed in the approved construction drawings associated with the Development.

3. Binding Effect. This Agreement shall run with the Property or a portion of the Property. This Agreement shall also be binding upon and inure to the benefit of the parties hereto, their respective personal representatives, heirs, successors, grantees and assigns. Assignment of interest within the meaning of this paragraph shall specifically include, but not be limited to, a conveyance or assignment of any portion of the Developer's legal or equitable interest in the Property, as well as any assignment of the Developer's rights to develop the Property under the terms and conditions of this Agreement. This Agreement shall be recorded.

4. Relationship of Parties. Nothing contained in this Agreement shall be deemed or construed, either by the parties hereto or by any third party, to create the relationship of principal and agent or create any partnership, joint venture or other association between the City and the Developer.

5. Counterparts. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which, together, shall constitute one and the same instrument.

6. Applicable Law. This Agreement shall be governed by and construed and enforced in accordance with the laws of the State of Wyoming.

7. Governmental Immunity. The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

8. Entire Agreement. This Agreement, including Exhibits A, B, and C attached hereto, contain the entire agreement between the parties with respect to the subject matter hereof and supersede all prior and contemporaneous representations, statements, understandings, negotiations and agreements, oral or written, between the parties, if any, with respect thereto.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement on the day and year first written above.

THE CITY OF CHEYENNE

By:

Marian J. Orr, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

BLUE FEDERAL CREDIT UNION, INC.

By:

Kim Alexander, CEO

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Marian J. Orr, Mayor of the City of Cheyenne, this _____ day of _____, 2020.

Witness my hand and official seal.

(SEAL) _____
My commission expires: _____ Notary Public

STATE OF _____)
) ss.
COUNTY OF _____)

The foregoing instrument was acknowledged before me by Kim Alexander, CEO of Blue Federal Credit Union, Inc., this _____ day of _____, 2020.

Witness my hand and official seal.

(SEAL) _____
My commission expires: _____ Notary Public

EXHIBIT A

Certificate of Review



“EXHIBIT A” CERTIFICATE OF REVIEW

City of Cheyenne, WY

This Certificate is issued pursuant to Section 2.2.3 of the Unified Development Code. The owner/agent herein named has received approval based on the revised site plan and building elevations submitted October 2, 2019 and the revised landscape plan submitted July 3, 2019 for the below-described real property. This Certificate entitles the owner and/or agent to make an application for all relative permits subject to the conditions stated below. A copy of this Certificate must be presented at the time of application for permits.

OWNER: Blue Federal Credit Union
c/o Kim Alexander
114 E. 7th Avenue
Cheyenne, WY 82001
kalexander@bluefcu.com

AGENT: Trey Rinne
AVIpc
Rinne@avipc.com

ADDRESS: 400 Cole Shopping Center, Cheyenne, WY

Legal description: Block 5 of Mountain View Park Subdivision

ZONING: Cole Shopping Center Planned Unit Development (PUD)

PROPOSED USE: Office and retail mixed use

CASE NUMBER: UDC-19-00123 (main site plan), 19-00123-02 (site plan adjustment) and 19-00123-01 (reduced landscaped setback along Chestnut Drive frontage)

SPECIFIC CONDITIONS:

1. Prior to issuance of a Certificate of Compliance (COC) for this project, the Applicant shall provide the Development Office with a copy of the approved Subdivision Standard Waiver granted by the City Engineer allowing attached sidewalks along the Converse Avenue and E. Pershing Blvd. frontages.
2. Prior to issuance of a Certificate of Compliance (COC), the Applicant shall record an Irrevocable Public Access Easement, approved by the City Attorney, for the sidewalks along Converse Avenue and Chestnut Drive that lie within the Site.
3. Prior to issuance of a COC, the Applicant shall dedicate the appropriate right-of-way (ROW) along Converse Avenue and E. Pershing Blvd. as necessary to address traffic impacts of the project.

GENERAL CONDITIONS:

1. This Certificate of Review approval is based on the revised site plan/landscape plan noted above which, combined, are referred to as the Site Plan herein.
2. The Site Plan approved by the Planning and Development Department represents a commitment by the owner/agent to carry out the construction of the project as represented. Any modification to the approved Site Plan must be coordinated through

the Development Office at which time a determination will be made as to the need for an amended Site Plan and/or additional Administrative or Board review. The site will be examined during the final inspection for compliance with the approved Site Plan of record. **NOTE: UNAPPROVED MODIFICATIONS TO THE SITE MAY BE CAUSE FOR NON-ISSUANCE OF A "CERTIFICATE OF COMPLIANCE".**

3. All mandatory signage and striping for the ADA van parking space (ref. Article 4, Section 4.5.2.d, UDC) are to be in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD).
4. Submittals for building permits must include the approved Site Plan in the building permit submittal. The Project is subject to building permits and properly licensed contractors. All buildings and structures shall comply with Title 15 of the Cheyenne City Code and the 2018 edition of the *International Building Code*.
5. When the site area exceeds one acre, a SWPPP in accordance with WDEQ is required to be submitted with the grading permit (2 copies). Approval of the grading permit shall be dependent on the approval of the SWPPP as well as grading. Sediment and erosion control shall be the responsibility of the owner or his agent at all times until the site is finally stabilized and the permit is terminated. No disturbance shall commence until all BMPs are in place. When the site area is less than one acre, the owner or his agent shall take all measures required to prevent any sediment from leaving the site even though no SWPPP is required.
6. Should any work take place within the City's Right-of-Way (ROW), this work shall conform to the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings in their entirety. All work in the ROW requires a "Right-of-Way Encroachment Permit". Two sets of approved construction plans shall accompany right-of-way permit application as well as traffic control plan. No work in the ROW shall begin until permit has been approved and issued.
7. As the property owner is responsible for all curb, gutter and sidewalk adjacent to the property (City Code 12.04), any concrete in the City ROW adjacent to a lot being improved and/or upgraded shall be brought to current City of Cheyenne and Board of Public Utilities Specifications and Standard Drawings as well as current (Americans with Disabilities Act) ADA standards. Any existing concrete in City ROW adjacent to property in a state of disrepair (curb, gutter, and sidewalk) shall be removed and replaced in accordance with the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings. Please call (307) 637-6288 to schedule a meeting with an inspector onsite to evaluate existing concrete prior to civil construction plans being drawn.
8. Any new signage requires compliance with City Codes and will require a separate building permit.
9. The Project is subject to building permits and properly licensed contractors.
10. The Site Plan that is the subject of this Certificate of Review (COR) must be complete and inspected by staff of the Planning & Development Department prior to issuance of a Certificate of Compliance (COC). Upon completion of all site requirements, please contact the Development Department at 307-637-6270 to schedule an inspection.
11. This Certificate of Review approval of the said Site Plan is valid for up to two years and shall expire on October 2, 2021 if not acted upon by fulfillment of the development by that date.

ISSUED BY:



Susana Montana
Senior Planner, City of Cheyenne Planning & Development Office

DATE: October 2, 2019

EXHIBIT B

Irrevocable Public Access Easement

"EXHIBIT B"

Irrevocable Public Access Easement

THIS IRREVOCABLE PUBLIC ACCESS EASEMENT by and between Blue Federal Credit Union, a Wyoming Nonprofit Corporation (hereinafter "Grantor") and the City of Cheyenne, Wyoming, (hereinafter "Grantee").

For good and valuable consideration, Grantor hereby grants to Grantee access to property situated at Block 5, Mountview Park, Cheyenne, Laramie County, Wyoming, described as follows:

SEE EXHIBIT A, ATTACHED

It is specifically provided that this Easement is for the purpose of a public sidewalk on the Grantor's property and shall run with the land associated therewith.

Grantor shall maintain said sidewalk in safe and good condition, including snow removal, in perpetuity.

Grantee is hereby vested with the right to have and to hold said easement in perpetuity for and on behalf of the general public. Grantor shall retain and have the right to otherwise fully use and enjoy said lands subject only to the rights granted herein and any other rights of record.

IN WITNESS WHEREOF, this instrument is executed this ____ day of _____, 20__.

Blue Federal Credit Union,
a Wyoming Nonprofit Corporation

By: _____

Title: _____

ACKNOWLEDGEMENT – BLUE FEDERAL CREDIT UNION

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared _____, with whom I am personally acquainted, and who, upon oath, acknowledged that he/she is the _____ of Blue Federal Credit Union, a Wyoming Nonprofit Corporation, and that he/she executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this _____ day of _____, 20__.

Notary Public

My commission expires: _____

EXHIBIT A

PERSHING BLVD

BLOCK 5 MOUNTVIEW PARK

CONVERSE AVE

N90°00'00"E 15.00

15.00'

15.00'

S03°36'36"W 63.31

11.00'

11.00'

IRREVOCABLE PUBLIC ACCESS EASEMENT

S89°53'24"E 695.13

N89°53'24"W 706.13

S00°00'07"E 8.00

8.00'

CHESTNUT DRIVE

POINT OF BEGINNING
SW CORNER BLOCK 5 MOUNTVIEW PARK
FOUND ALUMINUM CAP

LEGEND



FOUND CAP



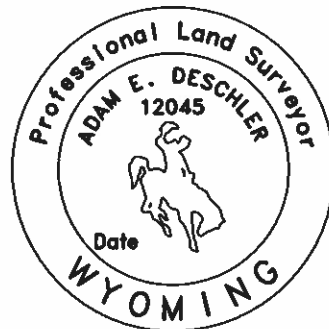
PROPOSED EASEMENT LINE



PROPERTY LINE



0 100'
SCALE 1" = 100'



CERTIFICATE OF SURVEYOR

I, ADAM DESCHLER, A DULY REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY CERTIFY THIS EXHIBIT REPRESENTED HEREON, TRULY AND CORRECTLY REPRESENTS THE RESULTS OF AN EASEMENT DESCRIPTION PREPARED UNDER MY DIRECT SUPERVISION COMPLETED IN NOVEMBER 2019.

IRREVOCABLE PUBLIC ACCESS
EASEMENT
PAGE 1 OF 2



EXHIBIT A

BASIS OF BEARINGS

CONSIDERING THE WEST LINE OF BLOCK 5 MOUNTVIEW PARK AS MEASURED BETWEEN FOUND MONUMENTS BEARING S00°00'44"E 418.23'

LEGAL DESCRIPTION

AN IRREVOCABLE PUBLIC ACCESS EASEMENT LOCATED IN THE NORTHWEST CORNER OF SECTION 33, TOWNSHIP 14 NORTH, RANGE 66 WEST, OF THE 6TH P.M. LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

BEGINNING AT A FOUND ALUMINUM CAP AT THE SOUTHWEST CORNER OF BLOCK 5 MOUNTVIEW PARK; THENCE CONTINUING ALONG THE WEST PROPERTY LINE OF SAID BLOCK 5, N00°00'44"W A DISTANCE OF 309.80 FEET; THENCE LEAVING SAID PROPERTY LINE, N90°00'00"E A DISTANCE OF 15.00 FEET; THENCE S00°00'44"E A DISTANCE OF 124.46 FEET; THENCE S03°36'36"W A DISTANCE OF 63.31 FEET; THENCE S00°00'44"E A DISTANCE OF 114.17 FEET; THENCE S89°53'24"E A DISTANCE OF 695.13 FEET; THENCE S00°00'07"E A DISTANCE OF 8.00 FEET TO A FOUND ALUMINUM CAP AT THE SOUTHEAST CORNER OF BLOCK 5 MOUNTVIEW PARK; THENCE CONTINUING ALONG THE SOUTH PROPERTY LINE OF SAID BLOCK 5, N89°53'24"W A DISTANCE OF 706.13 FEET MORE OR LESS TO THE POINT OF BEGINNING.

SAID EASEMENT CONTAINS 9,594 SQ. FT. MORE OR LESS AND IS SUBJECT TO ALL EASEMENTS OF RECORD.

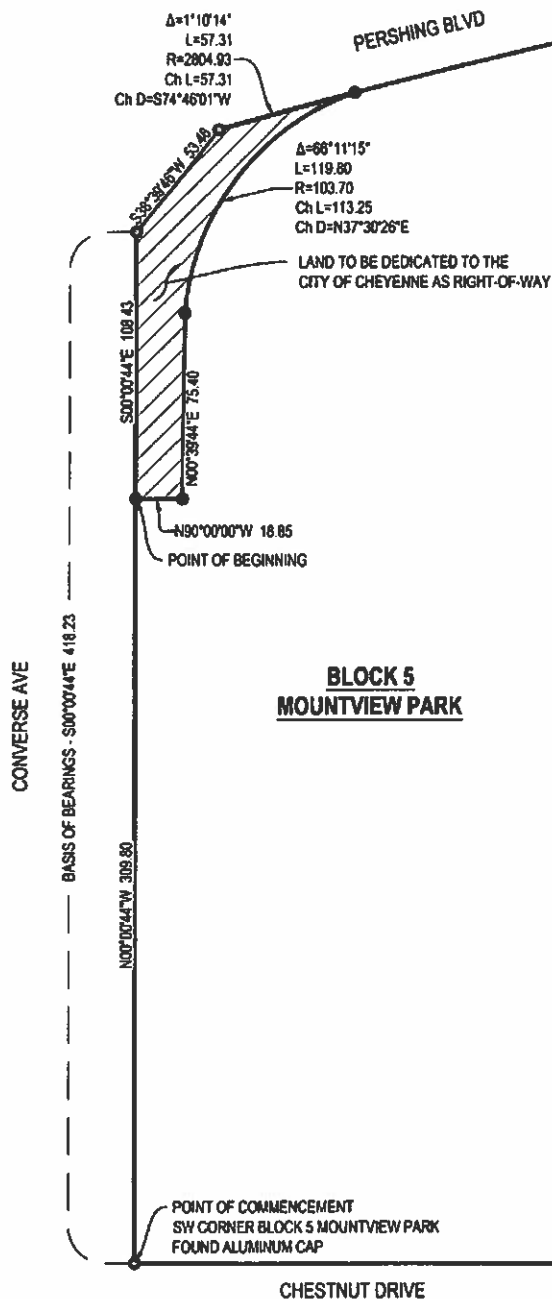


IRREVOCABLE PUBLIC ACCESS
EASEMENT
PAGE 2 OF 2

EXHIBIT C

Land for Dedication as Right-of-Way

"EXHIBIT C"



BASIS OF BEARINGS

CONSIDERING THE WEST LINE OF BLOCK 5 MOUNTVIEW PARK AS MEASURED BETWEEN FOUND MONUMENTS BEARING S00°00'44\"E 418.23'

LEGAL DESCRIPTION

A PORTION OF LAND TO BE DEDICATED AS RIGHT OF WAY TO THE CITY OF CHEYENNE LOCATED IN THE NORTHWEST CORNER OF SECTION 33, TOWNSHIP 14 NORTH, RANGE 66 WEST, OF THE 6TH P.M. LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING AT A FOUND POINT AT THE SOUTHWEST CORNER OF BLOCK 5 MOUNTVIEW PARK; THENCE CONTINUING ALONG THE WEST PROPERTY LINE OF SAID BLOCK 5, N00°00'44\"W A DISTANCE OF 309.80 FEET TO THE TRUE POINT OF BEGINNING; THENCE LEAVING SAID WEST PROPERTY LINE N90°00'00\"W A DISTANCE OF 18.85 FEET; THENCE N00°39'44\"E A DISTANCE OF 75.40 FEET TO THE BEGINNING OF A CURVE CONCAVE TO THE SOUTHEAST, SAID CURVE HAVING A RADIUS OF 103.70 FEET, A CENTRAL ANGLE OF 66°11'15\", AND A CHORD BEARING OF N37°30'26\"E AT A DISTANCE OF 113.25 FEET; THENCE 119.80 FEET ALONG THE ARC OF SAID CURVE TO A POINT ON THE NORTH LINE OF SAID BLOCK 5, ALSO BEING THE SOUTH RIGHT OF WAY LINE OF PERSHING BLVD AND THE BEGINNING OF A NON-TANGENT CURVE CONCAVE TO THE SOUTH. SAID CURVE HAVING A RADIUS OF 2804.93 FEET, A CENTRAL ANGLE OF 01°10'14\", AND A CHORD BEARING OF S74°46'01\"W AT A DISTANCE OF 57.31 FEET; THENCE ALONG THE ARC OF SAID CURVE 57.31 FEET TO A POINT; THENCE S38°39'46\"W A DISTANCE OF 53.46 FEET TO A POINT ON THE WEST LINE OF SAID BLOCK 5; AND THE EAST RIGHT OF WAY LINE OF CONVERSE AVE; THENCE CONTINUING ALONG SAID WEST PROPERTY LINE S00°00'44\"E A DISTANCE OF 108.43 FEET MORE OR LESS TO THE POINT OF BEGINNING; SAID PARCEL OF LAND CONTAINS 3,422 SQ. FT. MORE OR LESS AND IS SUBJECT TO ALL EASEMENTS OF RECORD.

LEGEND

- FOUND CAP
- SET ALUMINUM CAP, WY PLS 12045, AVIPC
- PROPERTY LINE

CERTIFICATE OF SURVEYOR

I, ADAM DESCHLER, A DULY REGISTERED PROFESSIONAL LAND SURVEYOR IN THE STATE OF WYOMING, HEREBY CERTIFY THIS EXHIBIT REPRESENTED HEREON, TRULY AND CORRECTLY REPRESENTS THE RESULTS OF A RIGHT OF WAY DEDICATION DESCRIPTION PREPARED UNDER MY DIRECT SUPERVISION COMPLETED IN DECEMBER 2019.

